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'Excessive' state taxes on guns, ammunition sales are target of new GOP crackdown effort

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28 Mar 2025 (TourismAfrica2006) Republican lawmakers are pushing to stop states from imposing excise taxes on gun and ammunition sales, a condemnation of a measure California enforced in 2024.

In 2023, California became the first state to adopt a measure imposing an excise tax targeting the gun industry. The legislation sets an 11% excise tax on guns and ammunition sales and directs the revenue toward gun relinquishment programs and other gun control initiatives.

Colorado is also poised to impose a 6.5% excise tax on similar purchases in April. Other states like Maryland, New York and Massachusetts are considering similar pieces of legislation.

But these initiatives amount to unconstitutional tax that undermines the Second Amendment, according to Republican lawmakers.

Sen. Jim Risch, R-Idaho, and Rep. Darrell Issa, R-Calif., who introduced the Freedom of Unfair Gun Taxes Act to their respective chambers of Congress Thursday, are seeking to bar states from adopting these measures.

"Blue states that implement an excessive excise tax to fund gun control initiatives are exploiting the Second Amendment," Risch said Thursday in a statement to Fox News Digital. "The Freedom from Unfair Gun Taxes Act ensures states do not place a significant financial burden on law-abiding gun owners to advance their anti-Second Amendment agenda."

Issa said states like California historically have introduced "extreme" policies targeting gun owners that jeopardize their Second Amendment rights.

"The latest attack is California's imposition of a 'sin tax' on firearms and ammunition," Issa said in a statement to Fox News Digital.

Specifically, Issa claimed California's new law, which requires gun sellers to foot the bill for the excise tax, is an "outrageous and unfair burden on law-abiding citizens."

Excise taxes target specific goods or services for manufacturers, consumers or retailers. California's new excise tax is coupled with the 10% to 11% federal excise tax gun dealers already pay that goes toward wildlife conservation efforts.

California Assembly member Jesse Gabriel, a Democrat representing the San Fernando Valley, spearheaded legislation known as the Gun Violence Prevention and School Safety Act in 2023 to impose the excise tax to raise revenue to support programs, including the California Violence Intervention and Prevention program.

The law also allocates revenue from the excise tax toward a court-based gun relinquishment program that revokes gun ownership from domestic abusers and convicted criminals and law enforcement initiatives focused on gun investigations.

California Gov. Gavin Newsom signed off on the law in September 2023, and it took effect in July.

"It's shameful that gun manufacturers are reaping record profits at the same time that gun violence has become the leading cause of death for kids in the United States," Gabriel said in a statement in July. "This law will generate

$160 million annually to fund critical violence prevention and school safety programs that will save lives and protect communities across the State of California."

Co-sponsors of the Senate's version of the Freedom of Unfair Gun Taxes Act include Republican senators Lindsey Graham of South Carolina, Deb Fischer of Nebraska, Mike Crapo of Idaho, Marsha Blackburn of Tennessee, Bill Cassidy of Louisiana, Kevin Cramer of North Dakota, Steve Daines of Montana, John Hoeven of North Dakota, Cindy Hyde-Smith of Mississippi, Jim Justice of West Virginia and Pete Ricketts of Nebraska.

Republican representatives Richard Hudson of North Carolina and Doug LaMalfa of California also co-sponsored the House's version of the measure.

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